

24CHCV03153 24CHCV03153

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Case Number: 24CHCV03153 Hearing Date: August 7, 2026 Dept: F49

Dept. F49

Date: 8/7/26

Case Name: Liana Alumyan vs. FCA US LLC; San Fernando
Motor Company; and Does 1-30

Case No. 24CHCV03153

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

AUGUST 7, 2026

MOTION FOR
ATTORNEYS' FEES, COSTS, AND EXPENSES

Los Angeles Superior
Court Case No. 24CHCV03153

Motion filed: 5/27/26

MOVING PARTY: Plaintiff Liana Alumyan

RESPONDING PARTY: Defendant FCA US LLC

NOTICE: OK

RELIEF REQUESTED: An order from this Court awarding Plaintiff attorney fees in the amount of \$90,176.00, plus an appropriate lodestar multiplier, and \$5,159.19 in costs and expenses.

TENTATIVE RULING: The Motion is GRANTED IN PART.

BACKGROUND

This matter arises out of alleged fraud and breaches of warranty related to a 2022 Jeep Wrangler 4XE purchased by Plaintiff Liana Alumyan ("Plaintiff"). On September 3, 2024, Plaintiff initiated this action against Defendants FCA US LLC ("FCA"), San Fernando Motor Company ("SFMC") (collectively "Defendants"), and Does 1 through 30, alleging fraud and deceit, breaches of warranty pursuant to both the Magnuson-Moss Warranty Act and the Song-Beverly Consumer Warranty Act, violation of Business and Professions Code sections 17200 et seq., and 17500 et seq., negligence, and strict liability. On October 8, 2024, FCA and SFMC filed their respective Answers.

On April 29, 2026, Plaintiff filed a Notice of Settlement of Entire Case.

On May 27, 2026, Plaintiff filed the instant Motion for Attorneys' Fees, Costs, and Expenses (the "Motion").

On July 24, 2026, FCA filed an Opposition.

On July 31, 2026, Plaintiff filed a Reply.

ANALYSIS

Attorney fees are allowed as costs when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10).) In a lemon law action, costs and expenses, including attorney fees, may be recovered by a prevailing buyer under the Song-Beverly Act. (See Civ. Code, § 1794, subd. (d).)

Pursuant to the Song-Beverly

Consumer Warranty Act, “[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794, subd. (d).)¿

The attorney bears the burden of

proof as to the “reasonableness” of any fee claim. (Code Civ. Proc., § 1033.5, subd. (c)(5).) This burden requires competent evidence as to the nature and value of the services rendered. (Martino v. Denevi (1986) 182 Cal.App.3d 553, 559.) “[T]he verified time statements of the attorneys ... are entitled to credence in the absence of a clear indication the records are erroneous.” (Horsford v. Board of Trustees of Cal. State University (2005) 132 Cal.App.4th 359, 396.) Even without detailed time records, the “[t]estimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees.” (Martino, at p. 559.)¿

“In challenging attorney fees as

excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488, quoting Premier Medical Management Systems, Inc. v. Cal. Insurance Guarantee Assn. (2008) 163 Cal.App.4th 550, 564.) The Court has discretion to reduce fees that result from inefficient or duplicative use of time. (Horsford, supra, 132 Cal.App.4th, at p. 395.)¿

In determining reasonable

attorney fees, the trial court begins with the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36.) The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (Ibid.) These factors include (1) the novelty and difficulty of the questions involved, (2) the skill

displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, and (4) the contingent nature of the fee award. (Ibid.)

A. Attorney Fees

(1) Prevailing Buyer

Plaintiff contends that Plaintiff is a prevailing buyer entitled to attorney fees, costs, and expenses because the Release Agreement between the parties provides that FCA will pay Plaintiff's attorney fees, costs, and expenses pursuant to Civil Code section 1794, subdivision (d). (Mot., at p. 5.) FCA does not dispute that Plaintiff is the prevailing party. Instead, FCA asserts that the claimed fees are excessive given the nature of the action. The Court accordingly finds that Plaintiff is a prevailing buyer pursuant to Civil Code section 1794, subdivision (d).

(2) Reasonableness of Hourly Rates

The reasonable hourly rate is the "prevailing rate for private attorneys in the community conducting noncontingent litigation of the same type." (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1133, emphasis in original.) "The experienced trial judge is the best judge of the value of professional services rendered in [their] court." (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1086.)

Plaintiff seeks to recover attorney fees for work performed by five individuals at rates Plaintiff contends are reasonable:

(1)
attorney Hovanes Margarian at an hourly rate of \$650 prior to July 1, 2025, and \$750 thereafter;

(2)
attorney Armen Margarian at an hourly rate of \$550 prior to July 1, 2025, and \$670 thereafter;

(3)

attorney Akop Jack Ter-Saakyan ("Ter-Saakyan") at an hourly rate of \$700;

(4)

attorney Patrick Kenneth Kimball ("Kimball") at an hourly rate of \$700; and

(5)

legal assistant Elmira Oganyan at an hourly rate of \$150.

(Mot., at pp. 5, 11-12.) In support of these rates, each attorney attests to their education, qualifications, and experience. (H. Margarian Decl., ¶¶ 2-4, 13; A. Margarian Decl., ¶¶ 2-3, 15; Ter-Saakyan Decl., ¶¶ 2-3; Kimball Decl., ¶¶ 2-4.) In presenting their qualifications and experience, each attorney also cites cases in which the foregoing rates were approved. (H. Margarian Decl., ¶¶ 18-19, 13; A. Margarian Decl., ¶¶ 16-18; Ter-Saakyan Decl., ¶¶ 9-12; Kimball Decl., ¶ 12.) Plaintiff also attaches a copy of the current Laffey Matrix to support that the requested fees are reasonable. (H. Margarian Decl., Exh. B.)

The Motion indicates that the foregoing rates were charged in contingent litigation. The proper hourly rate for calculation of the lodestar, however, is that for non-contingent litigation. (See Ketchum, supra, 24 Cal.4th, at p. 1133.) Contingency risk is a factor for consideration in determining the multiplier, not the lodestar. (Ibid.)

The Motion indicates that the attorneys' regular rates for non-contingent litigation are lower. Specifically, Hovanes Margarian currently charges \$650 per hour, Armen Margarian charges \$570 per hour, and Ter-Saakyan and Kimball charge \$600 per hour, rates that are \$100 lower than their requested contingent rates. (Mot., at p. 11.) At this \$100 "discount," the non-contingent hourly rates for the attorneys would be as follows:

(1)

Hovanes Margarian: \$550 prior to July 1, 2025 and \$650 thereafter,

(2)

Armen Margarian: \$450 prior to July 1, 2025, and \$570 thereafter; and

(3)

Ter-Saakyan and Kimball: \$600.

In Opposition, FCA argues that the hourly rates for all attorneys should reflect the rates reported in the 2023 Real Rate Report for consumer goods litigation and limit senior attorneys to \$495 per hour, the mean rate reported for 2023, and associates to \$295 per hour, the median rate reported for the same year. (Opp'n, at p. 4; Zurita-Cruz Decl., Exh. H.) Plaintiff asserts in Reply that this report was already outdated when the action was filed because it includes industry analysis for the years 2021-2023, before Plaintiff's attorneys were retained, and a more recent Real Rate Report has been published. (Reply, at pp. 3-4.) The Court agrees that the 2023 Real Rate Report is not relevant to the present circumstances. While the Court acknowledges that it has discretion to reduce hourly rates to be commensurate with the nature of the case, the foregoing non-contingent rates generally align with awards the Court has previously found to be reasonable.

(3) Reasonableness of Hours Incurred

Plaintiff supports the requested lodestar figure with a billing summary reflecting 138.55 hours of legal work performed across multiple stages of litigation, including case preparation, discovery, settlement, and preparation and filing of the Motion. (H. Margarian Decl., Exh. A.) Hovanes Margarian attests that the billing summary is a true and correct itemization of the billing in this case, and states that all times entries in the matter were contemporaneously recorded, reflecting actual work performed. (Id., ¶ 9; H. Margarian Suppl. Decl., ¶ 6.) This billing statement and the declarations of counsel are sufficient to establishment entitlement to the award. (Horsford, *supra*, 132 Cal.App.4th, at p. 396; Martino, *supra*, 182 Cal.App.3d, at p. 559.) The burden is thus on FCA to challenge specific items with adequate authority and evidence.

FCA argues that the fees requested should be reduced by at least 35 percent because the billing entries are excessive and unreasonable. (Opp'n, at p. 3.) Specifically, FCA contends that the following work is unreasonably claimed: (1) all time billed

for Plaintiff's motions to compel the deposition of FCA's person most knowledgeable ("PMK") and to deem facts admitted; (2) time billed for clerical tasks; (3) time billed for conducting a second vehicle inspection; (4) time billed on communications with Defendants; and (5) time billed for Ter-Saakyan's review of a deposition transcript. (Id., at pp. 4-7.) FCA further contends that the following work is excessively billed: (1) time billed drafting, reviewing, and finalizing the pleadings and discovery; (2) time reviewing hours in preparation for this Motion; (3) time spent on pre-litigation preparation; and (4) time spent preparing this Motion and related papers. (Ibid.)

(a)

Discovery Motions

First, FCA argues that all time billed in connection with Plaintiff's motions to compel the deposition of FCA's PMK and to deem the truth of matters specified in Plaintiff's requests for admission should be stricken. (Opp'n, at pp. 4-5.) FCA contends that the motions are templated and modification of the template to correspond to the instant facts would not have taken the 10.9 hours billed. (Ibid.) FCA further suggests that the work is not compensable because the motions were not heard on the merits. (Id., at p. 5.)

In Reply, Plaintiff asserts that the motions were necessary and reasonable because FCA did not produce its PMK or timely serve responses to Plaintiff's requests for admission, only complying with discovery obligations after the motions were prepared, reviewed, and filed. (Reply, at pp. 6-7.)

FCA offers no authority supporting the contention that motions must be heard on the merits to be compensable, and upon review of the challenged billing entries, they appear largely reasonable. The Court does note, however, that Ter-Saakyan billed 0.1 hours for each motion to reserve a hearing date. As discussed further below, reservation of hearing dates is a clerical task that is not compensable at the attorney rate. The Court accordingly discounts 0.2 hours from the billing entries of Ter-Saakyan.

(b)

Clerical Entries

A trial court retains discretion to reduce a fee amount where apparently clerical tasks are billed at excessive rates. (*Save Our Uniquely Rural Community Environment v. County of San Bernardino* (2015) 235 Cal.App.4th 1179, 1188 [finding no abuse of discretion where trial court found partner rates for tasks such as calendaring and preparing proofs of service to be excessive].)

FCA contends that \$3,205.00 in billing entries are not compensable because they represent clerical tasks such as calendaring, proofreading, and updating files. (Opp'n, at p. 8.) Plaintiff relies on *Lolley v. Campbell* (2002) 28 Cal.4th 367 and *Hayward v. Ventura Volvo* (2003) 108 Cal.App.4th 509 to argue that, under fee-shifting statutes, fees are compensable even where a client does not have a personal obligation to pay for them. (Reply, at p. 8.) Those cases are inapposite. *Lolley* concerned whether an attorney representing an indigent client at no cost to the client could recover statutory attorney's fees, and did not involve the question of the nature of work that was compensable. (*Lolley*, supra, at p. 376.) *Hayward* considered only whether a fee award was limited to the contractual amount agreed upon between the client and attorney in a contingent fee arrangement. (*Hayward*, supra, at pp. 511-513.) Neither case considered the reasonableness of claiming fees for clerical work. The Court is accordingly unpersuaded by Plaintiff's contention that work spent on clerical tasks is recoverable as charged.

The Court agrees with FCA that certain work appears rote or clerical in nature and is excessively billed, including entries for receipt and mailing of documents, ordering service, updating service lists, calendaring deadlines, and non-attorney proofreading and formatting of documents. The Court accordingly discounts 9.3 hours from the billing entries of Elmira Oganyan, 1.0 hour from the billing entries of Ter-Saakyan, 1.1 hours from the billing entries of Kimball, 0.1 hours from the billing entries of Hovanes Margarian prior to July 1, 2025, and 0.5 hours from the billing entries of Armen Margarian prior to July 1, 2025.

(c)

Second Vehicle Inspection

FCA asserts that the \$2,520.00 in total time billed for a second vehicle inspection is unduly cumulative because the purpose of the second inspection could have been achieved during the first

inspection six months prior. (Opp'n, at pp. 5-6.)

In Reply, Plaintiff contends that the purpose of each inspection was distinct, the first being a preliminary inspection for further case prosecution and the second an expert inspection. (Reply, at p. 9.) The billing records support this characterization, showing that the first inspection was a preliminary visual inspection and test driving of the vehicle that took place just after Plaintiff's counsel began representation for the purpose of case assessment. (H. Margarian Decl., Exh. A.) Entries related to the second inspection included the engagement of Plaintiff's retained expert to evaluate the Subject Vehicle. (Ibid.) The Court agrees that preliminary case evaluation and expert evaluation serve different purposes and that both may be necessary to the conduct of litigation.

Moreover, Plaintiff notes that FCA does not dispute any of the costs claimed, which include the costs for the retained expert to conduct the inspection and the associated inspection facility charge, tacitly agreeing that the expert's inspection was reasonable. (Reply, at p. 9; see Memorandum of Costs, Worksheet, at pp. 3-4.)

Based on the foregoing, the Court finds the inspection fees to be reasonable.

(d)

Communications with Defendants

FCA argues that all time billed in connection with communications between Plaintiff's counsel and FCA are improperly block-billed, obscuring the nature and purpose of the communications. FCA identifies two entries in particular that it claims are inappropriate: (1) a 2.0-hour entry for "[c]ommunication with FCA, including multiple follow up emails regarding the settlement of the case which was delayed for more than a year due to Defendant's unresponsiveness," billed by Kimball, and (2) a 2.5-hour entry billed by Hovanes Margarian with an identical description. (Zurita-Cruz Decl., Exh. A.) The entries purport to account for communications spanning a year or more, from December 2024 to December 2025 for Kimball and from September 2024 to May 2026 for Margarian (billed at his 2024 rate).

Block billing is not objectionable

per se. (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1325.) However, a court may determine that a fee request was padded where the vagueness of billing entries obscures the nature of the work performed. (Ibid.)

Although Plaintiff contends that the amount of communication, in the context of nearly two years of litigation, was reasonable, the Court notes that the billing summary also includes per-communication entries for Ter-Saakyan spanning the same period. The Court accordingly finds Kimball's and Margarian's block-billed entries unreasonably cumulative and reduces Kimball's hours by 2.0 and Hovanes Margarian's hours by 2.5 prior to July 1, 2025.

(e)

Deposition Transcript Review

FCA asserts that the 2.4 hours billed by Ter-Saakyan to review a deposition transcript is improperly vague, failing to explain the purpose for the review or demonstrate its reasonableness. (Opp'n, at p. 7.) Plaintiff contends that reviewing the transcript of the deposition of FCA's PMK was fundamental to assess the value of the case and to prepare for a potential trial. (Reply, at p. 10.) The Court does not find these hours to be unreasonable.

(f)

Drafting and Review of Pleadings and Discovery

FCA contends that the \$32,150.00 claimed for time spent drafting, reviewing, and finalizing Plaintiff's pleadings and discovery are excessive and unreasonable. (Opp'n, at p. 4.) FCA argues that the pleadings, discovery requests, and responses are pro forma documents that should not take three separate, experienced lemon law litigators dozens of hours to prepare and review. (Ibid.)

Plaintiff argues that the case was litigated in a manner consistent with prevailing practice, and the use of standardized language does not eliminate the need for analysis and particularization of pre-written documents to the facts of the case. (Reply, at p. 6.)

Upon review, the entries to which

FCA objects are connected with the following activities of Plaintiff's counsel:

(1) preparation of 20 sets of discovery propounded on both Defendants; (2) issuance and re-issuance of deposition notices for Defendants' PMKs, totaling 21 categories of inquiry; (3) preparation of deposition notices for three non-party deponents; and (3) review of not only dozens of pages of objections to the discovery, but also hundreds of pages of responses and document production. (See Zurita-Cruz Decl., Exh. A.) Drafting was performed by Kimball and Ter-Saakyan, with brief review by Hovanes Margarian, and it was primarily Ter-Saakyan reviewing Defendants' discovery responses and document production. (Ibid.) The associated entries do not appear to be duplicative or unreasonable given the amount of discovery conducted.

(g)

Pre-Litigation Preparation

FCA also challenges \$4,310.00 in billing entries for work it characterizes as "routine preparation work" in anticipation of the litigation. (Opp'n, at p. 6.) Plaintiff argues that even though the nature of lemon law cases may be similar as a whole, that does not eliminate the need for client intake, individual claim analysis, verification of defects, and research regarding a specific vehicle model's technical service bulletins to establish a proper foundation for the complaint. (Reply, at p. 11.) Plaintiff's argument is well-taken. The Court finds that initial investigation into a client's claims is reasonably necessary to the commencement of litigation, and FCA's challenge to this category of entries seeks improperly to strike all of the pre-filing investigative work upon which the Complaint is based.

(h)

The Fee Motion

FCA asserts that both the time billed for preparing "the breakdown of hours expended" by each attorney on this Motion and the time billed for preparing the Motion are excessive. (Opp'n, at pp. 5, 7.) FCA contends that preparing a billing summary would not have required 4.8 hours of work by four separate attorneys, and that the Motion is a routine, template fee motion that does not justify the 12.1 hours of work claimed. (Ibid.)

Plaintiff argues that it was necessary for each attorney to confirm the accuracy of the time they personally

billed, and that each attorney's review of time billed was limited to his or her own, individual billing entries. (Reply, at p. 7.) Upon review, the entries related to the billing summary include each attorney's independent review of his or her own time entries, preparation of the billing summary, and supervisory review of the summary and motion package. (See H. Margarian Decl., Exh. A.) The relative time each attorney spent reviewing the entries appears proportional to the total time expended by each attorney on the case. The entries are thus not facially improper, and FCA provides no evidence beyond general assertions that they seem excessive. The Court accordingly finds these fees to be reasonable.

As to preparation of the Motion and supporting declarations, Plaintiff contends that the Motion involved more than mere template customization and that the Reply took more time than anticipated to ensure a thorough and effective response. (Reply, at pp. 7-8.) The Court notes that the Motion, and its supporting declarations, are substantially similar to motions previously before this Court that were filed by Plaintiff's counsel. Although the particular facts of a case may vary, the particular issues in the fee motion do not, rendering the hours expended on the Motion to be excessive. The Court reduces those hours as follows: 2.0 hours from work billed by Ter-Saakyan, 0.5 hours from work billed by Armen Margarian in 2026, 0.5 hours from work billed by Kimball, and 3.0 hours from the work billed by Hovanes Margarian in 2026.

Based on the foregoing, the Court determines the lodestar amount to be \$68,216.00, as represented by the following chart.

Name

Hours

Rate

Total

Hovanes Margarian (pre-July 1, 2025)

2.6

\$550.00

\$1,430.00

Hovanes Margarian (July 1, 2025-present)

10.5

\$650.00

\$6,825.00

Armen Margarian (pre-July 1, 2025)

9.9

\$450.00

\$4,455.00

Armen Margarian (July 1, 2025-present)

0.3

\$570.00

\$171.00

Akop Jack Ter-Saakyan

71.1

\$600.00

\$42,660.00

Patrick Kenneth Kimball

21.0

\$600.00

\$12,600.00

Elmira Oganyan

0.5

\$150.00

\$75.00

(4) Lodestar Multiplier

Once the lodestar figure is determined, the Court may adjust the figure based on relevant factors. (Ketchum, *supra*, 24 Cal.4th, at p. 1132.) Factors that may be relevant include: “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.” (Ibid.)

Plaintiff requests an unspecified lodestar enhancement based on the risks undertaken in the representation and the skill and expertise of counsel. (Mot., at pp. 16-17.) FCA argues that a negative multiplier should be applied because this action presented no novel or difficult issues and lemon law motions are not, by their nature, complex. (Opp’n, at p. 10.)

The Court notes that Plaintiff’s counsel took the case on a contingency basis, risking nonpayment or payment incommensurate with the time invested in the case. (See H. Margarian Decl., ¶ 20.) Considering all factors raised, however, the Court finds that neither a positive nor negative multiplier is warranted. While Plaintiff’s counsel achieved a successful result for the client and did undertake some risk, the experience of counsel is already factored into the lodestar, and the action was a straightforward and routine lemon law matter.

Based on the foregoing, the Court GRANTS the Motion for attorney fees in the reduced amount of \$68,216.00.

B. Reasonable Costs and Expenses

Under the

Song-Beverly Act, a prevailing buyer shall be allowed to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses. (See Civ. Code § 1794, subd. (d).) A properly verified memorandum of costs generally satisfies the prevailing party's initial burden of establishing that the claimed costs were necessarily incurred. (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.)

Here,

Plaintiff submits a Memorandum of Costs itemizing costs for filing, witness, deposition, and other costs totaling \$5,159.19. (Memorandum of Costs, at p. 1.) Plaintiff's counsel attests that the costs were incurred in litigating this matter. (H. Margarian Decl., ¶ 57.)

Defendant

does not dispute the reasonableness of the claimed costs.

Accordingly,

the Court GRANTS the Motion as to costs and expenses.

CONCLUSION

Plaintiff Liana Alumyan's Motion for Attorneys' Fees, Costs, and Expenses is GRANTED IN PART. The Court awards \$68,216.00 in reasonable attorney fees and \$5,159.19 in costs, in favor of Plaintiff and against Defendant FCA US LLC.

Moving party to give notice.